Key Terms

Karta	Mitakshara Law
Dayabhaga Law	Coparceners
Separate Legal Entity	Dissolution



For Future Learning

a) Raman with members of his extended family established a Joint Hindu Family business of Handicrafts. Raman being the head of family controlled the business as 'Karta'. He had authority to take all decisions for the business. Many times, he sold goods for cash without informing other members of the family business. This resulted in lesser profits. He also sold one of the family properties and gave money to his daughter as a wedding gift. What values did karta ignored in the above case?

b) Palani is an Electronics Engineer. He has met two businessmen who wish to enter into a partnership with him for the manufacture of tape-recorders. They are prepared to make the investment and offer a fourth share in profits to Palani. Would you have any special words of advice for Palani?



For own thinking

i. Write any 2 HUF run Hospitals in your nearest place.

ii. How will you run a HUF for export business?

iii. How will you run a HUF Bus operating business?

iv. How will you organise a partnership business with your friends according to a law?

v. Name a Partnership firm in your town (Nearest).



Case Study

a) A father had self acquired agricultural land. He transferred the said land in the name of his three sons. The revenue records reflect the names of the three sons with 1/3rd share against each name. Father died recently. However physical partition of the said land amongst the three brothers has not been done as they have mutually decided against it. Eldest son has started managing the land since fathers demise. Is the land in question ancestral property of the three brothers ? Can the three brothers claim to a HUF? If yes, then since when are they HUF – after fathers demise or since the date land transferred in their names?

b) Draw a family tree diagram as you think. Just imagine you are running a business under the Joint Hindu Family system.

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